

**SUBI**  
**USER TERMS OF USE**

Last updated: April 12, 2026

Subi Incorporated (“Subi,” “we,” “our,” or “us”) makes this Subi platform and all software, services, content, and materials related to this platform or made accessible to you in connection with our platform, products, or services (collectively, our “Services”) available for your use subject to the terms and conditions in these Terms of Use (the “Terms”). **BY ACCESSING OR USING THE SERVICES, YOU AGREE THAT YOU HAVE READ AND UNDERSTAND THESE TERMS. IF YOU DO NOT AGREE WITH THESE TERMS, DO NOT ACCESS OR USE THE SERVICES.**

**1. MATERIALS AND DATA ON OUR SERVICE**

**1.1. Subi Materials.** Our Services may include or provide access to information, software, photos, videos, text, graphics, music, sounds, and other material or information provided by us or third parties, and may allow you to access data, documents, works, methods, processes, assessments, surveys, or reports that are provided or used by Subi in connection with our Services, or otherwise comprise or relate to our Services (collectively, the “Subi Materials”) whether or not protected by intellectual property laws. You are not acquiring any rights in or to Subi Materials other than a non-exclusive right to access and use Subi Materials solely in accordance with the terms of these Terms and solely in connection with your personal use of our Services. You understand and agree that Subi’s rights in any Subi Materials are valid and protected in all forms, media, and technologies existing now or developed in the future. You may not obscure or remove any proprietary rights notices contained in or on the Subi Materials.

**1.2. User Data Restrictions.** You may not upload, post, or transmit any information or documentation to us (“User Data”) that: (1) would violate or infringe the proprietary, privacy, publicity, or intellectual property rights of Subi or any individual or third party; (2) is obscene, defamatory, threatening, harassing, abusive, libelous, hateful, or harmful to any other person or entity; (3) violates any applicable law, statute, ordinance, or regulation; (4) puts in jeopardy the security of your account, Subi or our Services; or (5) promotes or displays any of the following content: (a) pornography; (b) violence; (c) racial intolerance or advocacy against any individual, group, or organization; (d) profanity; or (e) illicit drugs and drug paraphernalia. We reserve the right, but have no obligation, to pre-screen, review, flag, filter, modify, refuse, and remove any and all User Data from the Services. You understand and expressly acknowledge that by using our Services you may be exposed to content that you find offensive, indecent, or objectionable and that we will not be liable to you or any other person or entity for your consumption of any content on our Services. **YOU AGREE THAT YOU WILL EVALUATE AND BEAR ALL RISK RELATED TO THE USE OF, OR ANY ACTIVITIES ASSOCIATED WITH, USER DATA THAT YOU POST OR PROVIDE THROUGH OUR SERVICE. THE RESULTS OF ANY ACTIONS YOU TAKE BASED ON USER DATA, SUBI MATERIALS, OR OTHER CONTENT YOU FIND ON OUR SERVICE ARE SOLELY YOUR RESPONSIBILITY. UNDER NO CIRCUMSTANCES WILL WE BE LIABLE IN ANY WAY FOR USER DATA OR FOR ANY LOSS OR DAMAGE OF ANY KIND INCURRED AS A RESULT OF ANY USER DATA PROCESSED THROUGH OUR SERVICE.**

**1.3. Feedback.** We welcome your comments, feedback, information, or materials regarding our Services or any of our other products or services (collectively, “Feedback”). Your Feedback will become our property upon your submission to us. By submitting your Feedback to us, you agree to assign, and hereby irrevocably assign to us, all right, title, and interest in and to the Feedback and all copyrights and other intellectual property rights embodied in such Feedback on a worldwide basis. We will be free to use, copy, distribute, publish and modify your Feedback on an unrestricted basis, without compensation to you. Moreover, you hereby assign or waive, as the case may be, any moral rights that you may have in or to the Feedback.

**1.4. Links; Third Party Materials.** Our Services may include links and integrations with other websites and applications or utilize the service or content of other third parties (collectively, “Third-Party Materials”). Because we have no control over Third Party Materials or the administration of Third-Party Materials by the third parties that provide them, you acknowledge and agree that we are not responsible for the availability of such materials, and we do not endorse and are not responsible or liable for any content, advertising, products, or other materials on or available from such Third Party Materials or for any privacy or other practices of the third parties operating those websites or providing such materials. You further acknowledge and agree that we will not be responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by, in connection with, resulting from your use of or reliance on any such Third-Party Materials available on or through any such website or resource. We strongly encourage you to review any separate terms of use and privacy policies governing use of these third-party websites and Third-Party Materials.

**1.5. Ownership of Intellectual Property.** Subi or its licensors exclusively own all right, title and interest in and to our Services, the Subi Materials, and Feedback, including but not limited to, all ideas, inventions, inferences, discoveries, source and object software code, developments, derivative works, enhancements, upgrades, fixes and patches, formats and processes, and all images, trademarks, service marks, logos and icons displayed or related therein or thereto (collectively, “**Subi IP**”). Except as expressly provided herein, you have no right, license, or authorization with respect to any of the Subi IP. You shall not assert any claims to the contrary or otherwise do anything inconsistent with the allocation of ownership herein, including, but not limited to, challenging the validity of the authorizations or any intellectual property rights granted herein. In the event you are ever deemed to be the owner of any of the Subi IP, you shall immediately take all necessary steps to evidence, transfer, perfect, vest, or confirm Subi’s right, title and interest in the Subi IP. Subi is not transferring or granting to you any right, title, or interest in or to (or granting you any license or other permissions in or to) any Subi IP. The sole exception of the foregoing reservation of rights are the limited rights granted to you to use our Services, and which shall automatically terminate upon expiration or termination of these Terms. Any unauthorized use of any Subi IP, whether owned by us or other parties, may violate copyright laws, trademark laws, privacy and publicity laws and communications regulations and statutes. Trademarks owned by third parties are the property of those respective third parties.

## **2. SERVICE**

**2.1. Grant of License.** On the condition that you comply with all of your obligations under these Terms, and subject to any additional terms which we may present to you regarding certain features or functions of the Services or in any third-party licenses applicable to our Services, we hereby grant to you a limited, revocable, non-exclusive, non-transferable, non-sublicensable right to access and use our Services for your own personal use. We reserve all rights not otherwise expressly granted by these Terms. If you do not comply with these Terms, we reserve the right to revoke any license granted in these Terms and limit your access to our Services. Any use of our Services that exceeds the rights expressly granted in these Terms is strictly prohibited and constitutes a violation of these Terms, which may result in the termination of your right to access and use our Services. Any third-party software included in our Services is licensed subject to the additional terms of the applicable third-party license.

**2.2. Modification.** We may discontinue or alter any aspect of our Services, restrict the time our Services are available, and restrict the amount of use permitted at our sole discretion and without prior notice or liability to you. We may also install bug fixes, updates, patches, and other upgrades to our Services without prior notice or liability to you. Your only remedy is to discontinue using our Services if you do not want a modification we make to our Services.

**2.3. Removal of Access.** Your access to our Services is provided on a temporary basis with no guarantee of future availability or continued right to access. You agree that we may immediately suspend or terminate your access to our Services or any part thereof for any reason, in our reasonable discretion. Cause for such measures include, without limitation: (1) breach or violation of these Terms, or other incorporated agreements or guidelines; (2) discontinuance or material modification to our Services; (3) unexpected technical or security issues or problems; (4) extended periods of inactivity; or (5) your engagement in fraudulent or illegal activities. You further agree that such measures may be taken in our sole discretion and without liability to you or any third party.

**2.4. Defects and Availability.** We use commercially reasonable efforts to maintain our Services, but we are not responsible for any defects or failures associated with our Services, any part thereof, or any damages (such as lost profits or any other consequential or indirect damages) that may result from any such defects or failures. Our Services may be inaccessible or inoperable for any reason, including, without limitation: (1) equipment malfunctions; (2) periodic maintenance procedures or repairs which we may undertake from time to time; or (3) causes beyond our reasonable control or which we could not reasonably foresee. You understand that our Services are provided over the Internet, so the quality and availability of our Services may be affected by factors outside of our control. Our Services are not intended to be available 100% of the time and we do not make any representations, warranties, or guarantees regarding the reliability or availability of our Services. We do not represent, warrant, or guarantee that our Services will always be available or is completely free of human or technological errors. We will not be liable to you or any third party for damages or losses related to our Services being unavailable.

**2.5. Restrictions.** You may not: (1) license, sublicense, sell, resell, transfer, assign, distribute, or otherwise commercially exploit or make available to any third party any portion of our Services in any way, including any Subi Materials or other data contained therein; (2) copy, modify, adapt, alter, translate, create derivative works, reverse engineer, decompile, disassemble, or otherwise attempt to learn the source code, structure, or ideas upon which our Services are based; (3) use our Services or Subi Materials to develop a competing service or product; (4) use any device, software, or routine intended to damage or otherwise interfere with the proper functioning of our Services, servers, or networks connected to

our Services or take any other action that interferes with any other person's use of our Services; (5) decrypt, transfer, create Internet links to our Services, or "frame" or "mirror" our Services on any other server or wireless or Internet-based device; (6) use or merge our Services or any component thereof with other software, databases, or services not provided or approved by us; (7) circumvent or attempt to circumvent any electronic protection measures in place to regulate or control access to our Services; (8) use our Services for unlawful purposes; (9) develop, distribute, or sell any software or other functionality capable of launching, being launched from, or otherwise integrated with our Services; (10) use any bot, spider, or other automatic or manual device or process for the purpose of harvesting or compiling information on our Services for any reason; (11) access or attempt to access any other user's account; (12) use any Subi Materials made available through our Services in any manner that misappropriates any trade secret or infringes any copyright, trademark, patent, rights of publicity, or other proprietary right of any party; (13) introduce into our Services any virus, rogue program, Trojan horse, worm or other malicious or intentionally destructive code, software routines, or equipment components designed to permit unauthorized access to or disable, erase, or otherwise harm our Services, or perform any such actions; (14) introduce into our Services any back door, time bomb, drop dead device, or other software routine designed to disable a computer program automatically with the passage of time or under the positive control of an unauthorized person; (15) delete, modify, hack, or attempt to change or alter our Services, Subi Materials, or notices on our Services; (16) connect to or access any Subi computer system or network other than our Services; (17) impersonate any other person or entity to use or gain access to our Services, or (18) use the Services for any purpose other than your own personal use.

**2.6. Communication Features.** The Services may include features that allow you to communicate with clients and other third parties. By using these communication features, you agree that you will not: (1) use the Services to send any unlawful, threatening, harassing, defamatory, obscene, or otherwise, objectionable messages; (2) impersonate any person or entity, or falsely state or otherwise misrepresent your affiliation with a person or organization; (3) disclose or share private, confidential, or sensitive information about another individual without proper authorization or legal basis; and (4) interfere with, disrupt, or negatively impact the experience of other users, including excessive messaging, misuse of chat tools, or inappropriate conduct. Subi reserves the right **subject to applicable law** to monitor communications made through the Services and to suspend or terminate access for any violation of these Terms. Subi will have no liability related to any communication made using the Services.

**2.7. Prosecution.** We reserve the right to investigate and prosecute violations of any of the above to the fullest extent of the law. We may involve and cooperate with law enforcement authorities in prosecuting users who violate these Terms.

### **3. ACCOUNTS**

**3.1. Eligibility. YOU MUST BE AT LEAST AGE EIGHTEEN (18) TO USE OUR SERVICE.** BY ACCESSING, USING AND/OR SUBMITTING INFORMATION TO OR THROUGH OUR SERVICE, YOU REPRESENT THAT YOU ARE NOT YOUNGER THAN AGE 18.

**3.2. Registration.** To access certain features of our Services, you may be required to register for an account ("Account"). By creating an Account, you agree to (a) provide accurate, current and complete Account information, (b) promptly update your Account information as necessary, (c) maintain the security of your Account credentials, (d) be responsible for the acts or omissions of any third party who has authority to access or use the Services on your behalf, and (e) immediately notify us if you discover or otherwise suspect any security breaches related to the Site or your Account. You further understand and agree that we may take actions we deem reasonably necessary to prevent, respond to, pursue or remedy suspected or actual fraud and abuse, including without limitation, termination or suspension of your Account.

**3.3. Unauthorized Use and Information Changes.** You are responsible for maintaining the confidentiality of your Account and are responsible for all activities that occur under your Account. You may not share your Account information with anyone, and you agree to (a) notify us immediately of any unauthorized use of your password or any other breach of Account security; and (b) exit from your Account at the end of each session. If you provide any information that is untrue, inaccurate, not current or incomplete, or Subi has reasonable grounds to suspect that any information you provide is untrue, inaccurate, not current or incomplete, Subi has the right to suspend or terminate your Account and refuse any and all current or future use of the Services (or any portion thereof). You agree not to create an Account on behalf of someone other than yourself or the entity with which you are associated. Subi reserves the right to remove or reclaim any usernames at any time and for any reason, including but not limited to, claims by a third party that a username violates the third party's rights. You agree not to create an Account or use the Services if you have been previously removed by us, or if you have been previously banned from the Services.

**3.4. Storing Credentials.** Our Services may allow you to store your login credentials in your web browser or in our mobile app or on your mobile device so that you can be automatically logged in each time you access our Services. If someone else has access to your computer, web browser or mobile device, the automatic login feature will allow that person to have access to your account. You are responsible for any damages to Subi or our Services resulting from unauthorized access to our Services from your account and we will have no liability to you or any third party for damages or loss related to such unauthorized access or use.

**3.5. User Data License and Permissions.** Subject to our Privacy Policy, by submitting, uploading, transmitting, or otherwise making available any information, data, text, documents, materials, or content through or in connection with the Services (“User Data”), you grant Subi and its affiliates a worldwide, non-exclusive, royalty-free, transferable, sublicensable license to host, store, reproduce, process, adapt, modify, translate, create derivative works of, display, and otherwise use such User Data solely as necessary to (a) provide, operate, maintain, and improve the Services, (b) support your use of the Services and any features or functionality you access, (c) secure, monitor, and protect the Services and users, and (d) generate aggregated, de-identified analytics and performance insights relating to the Services.

**3.6. Mobile Use.** Your contract with your mobile network provider (“**Mobile Provider**”) will continue to apply when accessing or using our Services on your mobile device. You understand that your Mobile Provider may charge you fees for your use of its network connection services while accessing or using our Services, for data downloading, e-mail, text messages, for roaming, and other Mobile Provider or third-party charges. **YOU ACCEPT RESPONSIBILITY FOR ALL MOBILE PROVIDER FEES.**

**3.7. Push Notifications.** When you download the Services, we may send you push notifications to your device as a way to deliver information, offers, alerts, updates, reminders, news, and other relevant notifications pertaining to Services, including messages, sounds, and hyperlinks to pages within the Services. Subi may deliver push notifications on devices, whether or not you are currently logged in to and/or using the Services, and whether or not your device is in locked and/or sleep mode. Push notifications may be controlled from within the Services’ settings and at the device’s operating system “OS” level at any time. Some devices may allow us to send push notifications only after you grant permission for us to do so when you first download the Services. Other devices will automatically opt you in to receive the push notifications when you download the Services. In any case, you can manage your push notification preferences and choose whether we have permission to send push notifications, by managing your preferences in the Services or at the OS level settings of your device, and you can set and reset your push notifications permissions as often as you wish. For the avoidance of doubt, choosing to opt out of push notifications does not serve as an indication of your withdrawal of consent to receiving communications in electronic form.

#### **4. SUBSCRIPTIONS AND PAYMENTS**

**4.1. Subscriptions.** We offer premium subscriptions for our Services (“Subscriptions”). When you register for a Subscription, you expressly acknowledge and agree that we (or our third-party payment processor) are authorized to charge you on a periodic basis (as selected by you) for your Subscription (in addition to any applicable taxes and other charges) for as long as your Subscription continues. Subscriptions that you purchase through our Site automatically renew unless cancelled before the renewal date. You must cancel at least 14 calendar days prior to your renewal date to avoid being charged. Cancellations after this period will take effect at the end of the following billing cycle.

**4.2. Refunds.** Monetary refunds will not be provided under any circumstances, **except where required by law**. In the event of a service interruption or program size discrepancy, only credits will be granted for future programs or services offered by Subi. This policy applies uniformly to all products and Services offered by Subi.

**4.3. Payment Information.** By providing a credit card, debit card, or other payment method that we accept, you represent and warrant that you are authorized to use the designated payment method and that you authorize us (or our third-party payment processor) to charge your payment method for the total amount of your purchase (including any applicable taxes and other charges). If the payment method cannot be verified, is invalid or is otherwise not acceptable, your order may be suspended or cancelled. You must resolve any payment method problems before we proceed with your order. If you want to change or update your payment method information, you can do so at any time by logging into your Account. You authorize us (or our third party-payment processor) to charge your payment method for the corresponding amount for your order. We reserve the right to cancel or refuse any order for any reason at any time, including after an order has been submitted, whether or not the order has been confirmed.

#### **5. REPRESENTATIONS**

- 5.1. Representations.** You hereby represent and warrant that: (1) you (a) are at least the age of 18; and (b) have the power and authority to enter into and perform your obligations under these Terms; (2) all information provided by you to us is truthful, accurate and complete; (3) you will comply with the terms and conditions of these Terms and any other agreement to which you are subject that is related to your use of our Services, your Feedback, or any part thereof; (4) if applicable, you have provided and will maintain accurate and complete information with us, including, without limitation, your legal name, email address, and any other information we may reasonably require; (5) your access to and use of our Services or any part thereof will not constitute a breach or violation of any other agreement, contract, terms of use or any law or regulation to which you are subject; and (6) you will not use our Services in order to gain competitive intelligence about us, our Services, or any product or service offered via our Services or to otherwise compete with us.
- 5.2. User Data Representations.** You hereby represent and warrant that any User Data uploaded while using the Services, including documentation and communications, does not violate the rights of any third party, including, without limitation, the intellectual property, privacy, or publicity rights of any third party. If User Data contains any personal information of individuals, you represent and warrant that you have obtained any required permissions or consent from those individuals whose personal information may be accessed through the User Data.
- 5.3. Feedback Representations.** In the event you provide any Feedback via our Services, you hereby make the following additional representations and warranties to us: (1) you are owner of such Feedback or otherwise have the right to grant us the licenses or assignments granted pursuant to these Terms; (2) you have secured any and all consents necessary to provide the Feedback and to grant the foregoing licenses or assignments; (3) the Feedback does not violate the rights of any third party, including, without limitation, the intellectual property, privacy or publicity rights of any third party, and such Feedback does not contain any personally identifiable information about third parties in violation of such parties' rights; (4) the use of any Feedback will not result in harm or personal injury to any third party; and (5) all factual information contained in the Feedback is true and accurate.
- 5.4. Connected Account Representations.** Our Services may allow you to integrate and link to third party platforms such as email providers, calendar tools, messaging services, file storage, and real estate-specific platforms. Once connected, Subi may access your account and related information on those platforms to provide the Services. You consent to Subi's access to any connected third-party platforms and represent and warrant that you have the authority to connect those accounts. For the avoidance of doubt, you represent and warrant that you have obtained any required permissions or consents from any individual whose personal information may be accessed through third party integrations.
- 5.5. AI Features Representations.** The Services may include features powered by artificial intelligence ("AI"). You agree and understand that these AI features are not intended to replace professional judgment, responsibility, and due diligence, and represent and warrant that you are responsible for checking all AI-generated drafts, messages, or actions with human review before relying on them or sharing them with other parties. You also agree and acknowledge that User Data and data generated through your use of the Services may be used to train and improve an internal AI model, **subject to our Privacy Policy**.

## **6. DISCLAIMERS OF WARRANTY**

- 6.1. SERVICES.** TO THE MAXIMUM EXTENT PERMITTED BY LAW, OUR SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE," AND AT YOUR SOLE RISK. TO THE MAXIMUM EXTENT PERMITTED BY LAW, WE EXPRESSLY DISCLAIM ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS OR IMPLIED, INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR USE OR PURPOSE, TITLE, AND NON-INFRINGEMENT.

WITHOUT LIMITING THE FOREGOING, WE MAKE NO WARRANTY THAT OUR SERVICE (INCLUDING THE SUBI MATERIALS) WILL MEET YOUR REQUIREMENTS, THAT USE OF THE FOREGOING WILL BE UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE, THAT THE RESULTS OBTAINED FROM THE USE OF THE FOREGOING OR ANY INFORMATION OR CONTENT FOUND ON OUR SERVICE WILL BE ACCURATE OR RELIABLE, THAT DEFECTS IN THE OPERATION OR FUNCTIONALITY OF OUR SERVICE WILL BE CORRECTED, THAT OUR SERVICE AND ANY CONTENT OR INFORMATION FOUND ON OUR SERVICE WILL BE VIRUS-FREE, OR THAT THE QUALITY OF ANY INFORMATION, CONTENT, OR OTHER MATERIALS OBTAINED THROUGH OUR SERVICE WILL MEET YOUR EXPECTATIONS. SUBI WILL HAVE NO LIABILITY REGARDING ANY LOSS OF DATA, FOR ANY LOST PROFITS, OR FOR ANY OTHER DAMAGE RELATED TO THE USE OF THE SERVICES.

- 6.2. No Professional Advice.** The Services and information provided are intended solely as a tool and for general informational purposes. They are not intended to provide a substitute to legal, financial, or real estate advice, and Subi



will have no liability related to any information provided through the Services. **Subi is not a licensed real estate broker, agent, or fiduciary.**

## **7. INDEMNITY; LIMITATION OF LIABILITY**

**7.1. Indemnity.** You agree to defend, indemnify, and hold harmless Subi, our affiliates, and all of their officers, members, managers, employees, Services providers, Licensors, and agents (collectively, “**Released Parties**”) from and against any and all first-party and third-party claims, liabilities, damages, losses, demands, or expenses, including attorney’s fees and costs and expenses, arising out of or in any way connected with: (a) your use of our Services, (b) your violation of these Terms, (c) any User Data you provide through our Services, (d) your violation of any law or the rights of any third party, and (e) your negligence or willful misconduct.

**7.2. Wire Fraud and Payment Instructions Risk Notice.** You acknowledge that real estate transactions are a frequent target for wire fraud, phishing, and other forms of payment redirection schemes. Fraudsters may attempt to impersonate Subi, real estate professionals, financial institutions, or transaction counterparties and provide false wiring or payment instructions. Subi does not verify or authenticate the accuracy of any wiring or payment information transmitted through or in connection with the Services. You are solely responsible for independently verifying all payment instructions, including by directly contacting the intended recipient using a trusted and previously verified communication method before transferring any funds. Subi will not be liable for any losses, damages, or claims arising from or related to fraudulent, unauthorized, or incorrect payment instructions, including where such instructions are transmitted through or appear to originate from the Services, except to the extent such liability cannot be limited under applicable law. You agree to exercise reasonable caution when receiving or acting upon payment instructions and to promptly report any suspected fraudulent activity to Subi. We will never change our payment instructions by email/SMS without prior verified account authentication.

**7.3. Limitation of Liability.** UNDER NO CIRCUMSTANCES SHALL RELEASED PARTIES BE LIABLE TO YOU OR ANY THIRD PARTY WITH RESPECT TO ITS OBLIGATIONS UNDER THESE TERMS OR OTHERWISE FOR LOST PROFITS, LOSS OF DATA, WORK STOPPAGE, PERSONAL INJURY, DEATH, OR CONSEQUENTIAL, EXEMPLARY, SPECIAL, INDIRECT, INCIDENTAL OR PUNITIVE DAMAGES, EVEN IF YOU HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. IF YOU ARE DISSATISFIED WITH OUR SERVICE, OR WITH THESE TERMS, YOUR SOLE AND EXCLUSIVE REMEDY IS TO DISCONTINUE USING OUR SERVICE. IN ANY EVENT, THE TOTAL MAXIMUM AGGREGATE LIABILITY UNDER THESE TERMS FOR THE USE OF ANY OR ALL PARTS OF OUR SERVICE IN ANY MANNER WHATSOEVER SHALL BE LIMITED TO ONE HUNDRED DOLLARS (\$100.00 USD).

**7.4. For California Residents.** IF YOU ARE A CALIFORNIA RESIDENT OR COULD OTHERWISE CLAIM THE PROTECTIONS OF CALIFORNIA LAW, YOU FURTHER EXPRESSLY WAIVE THE PROVISIONS OF SECTION 1542 OF THE CALIFORNIA CIVIL CODE, WHICH READS AS FOLLOWS: “A GENERAL RELEASE DOES NOT EXTEND TO THE CLAIMS WHICH THE CREDITOR DOES NOT KNOW OR SUSPECT TO EXIST IN HIS OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE WHICH, IF KNOWN BY HIM OR HER, MUST HAVE MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR.” YOU ACKNOWLEDGE THAT YOU HAVE READ AND UNDERSTAND SECTION 1542 OF THE CALIFORNIA CIVIL CODE, AND YOU HEREBY EXPRESSLY WAIVE AND RELINQUISH ALL RIGHTS AND BENEFITS UNDER THAT SECTION AND ANY LAW OF ANY JURISDICTION OF SIMILAR EFFECT WITH RESPECT TO YOUR RELEASE OF ANY CLAIMS YOU MAY HAVE AGAINST RELEASED PARTIES.

## **8. MISCELLANEOUS**

**8.1. Governing Law.** **Except as otherwise provided in the Dispute Resolution section,** these Terms will be governed by and construed, interpreted, and enforced in accordance with the laws of the State of Nevada without reference to its conflicts or choice of law principles. Any arbitration or court proceeding will take place in the State of Nevada in the County of Washoe, and you hereby consent to the exclusive jurisdiction and venue of the state or Federal courts in the State of Nevada in the County of Washoe. You irrevocably submit and consent to the personal jurisdiction of such courts.

**8.2. Dispute Resolution; Arbitration; Class Action Waiver.** PLEASE READ THIS SECTION CAREFULLY. IT AFFECTS YOUR LEGAL RIGHTS. You and Subi agree that any dispute, claim, or controversy arising out of or relating to these Terms or the Services (each, a “Dispute”) will be resolved exclusively through binding individual arbitration administered by the American Arbitration Association (“AAA”) under its Consumer Arbitration Rules. Before initiating arbitration, you agree to first provide written notice of the Dispute to legal@oksubi.com and attempt to resolve the matter informally for at least thirty (30) days. The arbitration will be conducted by a single arbitrator and may

be held remotely or based on written submissions. Unless otherwise required by applicable law, the arbitration will be deemed to take place in Washoe County, Nevada, and Nevada law will govern. The arbitrator will have exclusive authority to resolve any Dispute, including issues of arbitrability, and may award any relief available in court on an individual basis. TO THE MAXIMUM EXTENT PERMITTED BY LAW, YOU AND SUBI AGREE THAT ANY DISPUTE WILL BE RESOLVED ONLY ON AN INDIVIDUAL BASIS AND NOT AS PART OF ANY CLASS, CONSOLIDATED, OR REPRESENTATIVE ACTION, AND YOU WAIVE ANY RIGHT TO A JURY TRIAL.

- 8.3. Term.** These Terms are effective upon your acceptance and will continue in full force until terminated by you or us. You may terminate these Terms at any time by immediately discontinuing all access to our Services. Termination or cancellation of these Terms will not affect any right or relief to which we may be entitled at law or in equity. We reserve the right to terminate these Terms at any time and for any reason without prior notice to you. Further, you agree that we will not be liable to you or any third-party for any termination or suspension of your access to our Services or any part thereof.
- 8.4. Consent to Do Business Electronically.** We use and rely upon electronic records and electronic signatures for the execution and delivery of these Terms and any other agreements, undertakings, notices, disclosures or other documents, communications or information of any type sent or received in accordance with these Terms and in performing our obligations and exercising our rights under these Terms. Neither you nor Subi will prevent or inhibit in any way the other party from printing, saving, or otherwise storing electronic records sent or otherwise made available to the other party. You agree not to contest the authorization for, or validity or enforceability of, electronic records and electronic signatures, or the admissibility of copies thereof, under any applicable law relating to whether certain agreements, files, or electronic records are to be in writing or signed by you to be bound thereby. You will bear your own costs and expenses in conducting business electronically, and will undertake all steps necessary, including software, hardware, and other equipment upgrades and purchases, in order to be able to conduct business electronically.
- 8.5. Equitable Relief.** You agree that breach of the provisions of these Terms would cause irreparable harm and significant injury to us which would be both difficult to ascertain and which would not be compensable by damages alone. As such, you agree that we have the right to enforce the provisions of these Terms by injunction (without necessity of posting bond), specific performance, or other equitable relief without prejudice to any other rights and remedies we may have for your breach of these Terms.
- 8.6. Entire Agreement.** These Terms and any hyperlinked policies and procedures constitute the entire agreement between you and Subi with respect to the subject matter hereof and supersede all prior agreements, both oral and written, with respect to the subject matter hereof. We may revise and update these Terms from time to time, and will post the updated Agreement to our Services. UNLESS OTHERWISE STATED IN THE AMENDED VERSION OF THESE TERMS, ANY CHANGES TO THESE TERMS WILL APPLY IMMEDIATELY UPON POSTING. Although we are not obligated to provide you with notice of any changes, any changes to these Terms will not apply retroactively to events that occurred prior to such changes. Your continued use of our Services will constitute your agreement to any new provisions within the revised Agreement.
- 8.7. Waiver; Severability.** Our failure to enforce any provision of these Terms will not be deemed to be a waiver of our right to enforce them. If any term or provision of these Terms will be held to be invalid, illegal, or unenforceable, the remaining terms and provisions of these Terms will remain in full force and effect, and such invalid, illegal, or unenforceable term or provision will be deemed not to be part of these Terms.
- 8.8. Assignment.** You may not assign, transfer, or sell (voluntarily or by operation of law) your rights or obligations under these Terms, nor delegate your duties hereunder to any other person, without our prior written consent. Any purported assignment without our consent will be void and will constitute a breach of these Terms. We may assign these Terms or delegate or subcontract our obligations under these Terms at any time.
- 8.9. Survival.** The provisions of these Terms that by their content are intended to survive the expiration or termination of these Terms, including, without limitation, provisions governing ownership and use of intellectual property, representations, disclaimers, warranties, liability, indemnification, governing law, jurisdiction, venue, remedies, rights after termination, and interpretation of these Terms, will survive the expiration or termination of these Terms for their full statutory period.
- 8.10. Contact Us.** Submit your question through our support services at [legal@oksubi.com](mailto:legal@oksubi.com).